

Court No. - 21

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal & Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Arvind Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sabhajeet Yadav,J.

Hon'ble Abhinava Upadhya,J.

Amendment application filed today is taken on record.

As prayed put tomorrow as fresh.

Order Date :- 8.6.2010

Abhishek Sri.

Court No. - 21

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal & Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Arvind Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sabhajeet Yadav,J.

Hon'ble Abhinava Upadhya,J.

As prayed, put up tomorrow as fresh.

In the meantime learned counsel for the petitioner shall make necessary amendment in the writ petition.

Order Date :- 10.6.2010

SA

Court No. - 21

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal & Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Arvind Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sabhajeet Yadav,J.

Hon'ble Bala Krishna Narayana,J.

Put up as fresh before appropriate Bench on Monday i.e. 14.6.2010.

Order Date :- 11.6.2010

cps

Court No. - 10

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal & Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Arvind Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Rakesh Sharma,J.

Hon'ble Sabhajeet Yadav,J.

Heard learned counsel for the petitioner and learned A.G.A. appearing for the State.

Learned Standing Counsel is directed to file counter affidavit within four weeks. Petitioner shall have three weeks thereafter to file rejoinder affidavit.

List immediately thereafter before the appropriate Bench.

Order Date :- 15.6.2010

GNV

Court No. - 2

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal & Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Arvind Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

As prayed by Shri H.P. Dubey, put up tomorrow.

Order Date :- 19.7.2010

SB

Court No. - 2

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal & Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Arvind Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

Heard learned counsel for the petitioners, Sri H.P. Dube and Sri Raj Kumar, learned counsel for the respondents.

Learned counsel for the petitioners submit that by order dated 19th May, 2010, the petitioner has been assessed from December, 2002 on the basis of inspection dated 24th February, 2010. He submit that Annexure 6.3 of U.P. Electricity Supply Code, 2005 the maximum period for which assessment could have been made is 365 days. He submits that the assessment being per se against the statutory provisions is liable to be set aside.

Sri H.P. Dube, learned counsel for the respondent has refuted the submission and submit that Annexure 6.3 shall be applicable only when the period cannot be ascertained.

Sri H.P. Dube prays for and is allowed three weeks time to file counter affidavit. One week thereafter is allowed to the learned counsel for the petitioner to file rejoinder affidavit.

List after expiry of the aforesaid period.

In the meantime subject to petitioner depositing the amount as assessed by the order dated 19th May, 2010 to the extent for a period of one year before 24th February, 2010 within a week, the electricity connection of the petitioner shall be connected. Petitioner however, may deposit the regular bills as and when they are raised.

Order Date :- 20.7.2010

Shiraz

Court No. - 2

Civil Misc. Correction Application No. 215006 of 2010.

In

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal & Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Arvind Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube,Rajkumar Singh

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

This is an application under the heading of correction application wherein the prayer has been made to stay the order dated 30.5.2010 directing the respondent to restore to restore the electricity connection of the petitioner. This application is not a correction application.

The application is rejected.

However, it shall be open for the petitioners to file a stay application.

Order Date :- 30.7.2010

Shiraz

Court No. - 2

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal & Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Arvind Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube,Rajkumar Singh

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

Supplementary affidavit filed on behalf of the petitioners is taken on record.

Order Date :- 30.7.2010

Shiraz

Court No. - 39

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal And Another

Respondent :- State of U.P. and Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,H.P. Dube,Rajkumar Singh

Hon'ble Salil Kumar Rai,J.

Hon'ble Arun Kumar Singh Deshwal,J.

On the request of learned counsel for the petitioners, the case is adjourned for the day.

List again.

Order Date :- 25.5.2023

S.Chaurasia

Court No. - 3

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal And Another

Respondent :- State of U.P. and Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,H.P. Dube,Rajkumar Singh

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

The counsel appearing for the State and the respondents no. 2, 4, 5 and 6 are granted two weeks' time to file counter affidavit.

Learned counsel for the petitioners may inform the counsel appearing for the respondents no. 2, 4, 5 and 6 about the order which has been passed today.

List this case on 11.8.2023.

Order Date :- 27.7.2023

PK

(Manoj Bajaj,J.) (Siddhartha Varma,J.)

Court No. - 3

Case :- WRIT - C No. - 33297 of 2010

Petitioner :- Vijay Krishna Agrawal And Another

Respondent :- State of U.P. and Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,H.P. Dube,Rajkumar Singh

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

**C.M. Delay Condonation Application No.7 of 2023 and C.M.
Substitution Application No.8 of 2023**

Issue notice.

List on the date indicated in the notice.

Petition

Learned counsel for the petitioner states that there is one more substitution application filed on 5.8.2023.

The aforesaid application is not on the record.

Office to trace out and place the same on record.

Order Date :- 11.8.2023

Rakesh



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 33297 of 2010

Vijay Krishna Agrawal And Another

.....Petitioner(s)

Versus

State of U.P. and Others

.....Respondent(s)

Counsel for Petitioner(s)	: Arvind Srivastava
Counsel for Respondent(s)	: C.S.C., H.P. Dube, Rajkumar Singh

Court No. - 2

**HON'BLE ATUL SREEDHARAN, J.
HON'BLE SIDDHARTH NANDAN, J.**

Civil Misc. (Delay Condonation) Application No.7 of 2023

1. Cause shown for the delay in filing the substitution application is sufficient. The delay is condoned.
2. The delay condonation application is allowed.

Civil Misc. Substitution Application No. 8 of 2023

1. This application has been filed with a prayer for substituting the heirs and legal representatives of the petitioner no. 1 Vijay Krishna Agrawal and petitioner no. 2 Smt. Tara Rani Agrawal, who are said to have died on 25.12.2022 and 23.05.2012 respectively leaving behind their four sons namely Sandeep Agrawal, Pradeep Agrawal, Saurabh Agrawal and Gaurav Agrawal and one daughter namely Smt. Shalini Agrawal.
2. Learned counsel for the respondents has no objection.
3. For the reasons given in the accompanying affidavit, the substitution application is allowed.
4. Let the heirs and legal representatives of deceased-petitioner no. 1 Vijay Krishna Agrawal and petitioner no. 2 Smt. Tara Rani Agrawal mentioned in the paragraph 2 of the affidavit accompanying the substitution application their four sons namely Sandeep Agrawal, Pradeep Agrawal, Saurabh Agrawal and Gaurav Agrawal and one daughter namely Smt. Shalini Agrawal be substituted as petitioner nos. 2/1, 2/2, 2/3, 2/4 & 2/5 in the writ petition and insert the word "deceased" after the names of petitioner no.1 and petitioner no. 2.
5. Office is directed to make necessary amendment in the array of the parties in the petition within ten days.

Order on Petition

1. Learned counsel for the petitioners requested to file vakalatnama on behalf of the newly added petitioners.
2. Upon the request of learned counsel for the petitioners, list this case on 18.03.2026.

February 18, 2026
Vikram

(Siddharth Nandan,J.) (Atul Sreedharan,J.)



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 33297 of 2010

Vijay Krishna Agrawal And Another

.....Petitioner(s)

Versus

State of U.P. and Others

.....Respondent(s)

Counsel for Petitioner(s)	: Arvind Srivastava
Counsel for Respondent(s)	: C.S.C., H.P. Dube, Rajkumar Singh

Court No. - 2

**HON'BLE ATUL SREEDHARAN, J.
HON'BLE SIDDHARTH NANDAN, J.**

1. Sri Arvind Srivastava, learned counsel for the petitioners submits that he is not pressing relief in prayer clause i.e. relief Nos.1(a) and 1(b).
2. By way of present writ petition, the assessment order has been challenged on the ground that it was passed in violation of principles of natural justice.
3. We find that the Electricity Department is contesting respondent. In the present case, the name of Sri H.P. Dube, Advocate has been shown as counsel for respondent Nos.2 & 3. We have been informed that Sri H.P. Dube, Advocate is no longer representing the Electricity Department and one Sri Baleshwar Chaturvedi, Advocate is representing it.
4. In view of the aforesaid, we request learned counsel for the petitioners to serve a copy on Sri Baleshwar Chaturvedi, Advocate and it is further requested that a counter affidavit may also be filed on or before the next date of listing, by all the respondents.
5. List this case on **02.04.2026**.

March 18, 2026
R.S. Tiwari

(Siddharth Nandan,J.) (Atul Sreedharan,J.)